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Case Number: 25PSCV01303 Hearing Date: August 5, 2026 Dept: O

Tentative Ruling

DEFENDANT

G.I. TRUCKING COMPANY

dba ESTES WEST'S NOTICE OF MOTION AND MOTION FOR TERMINATING
SANCTIONS AGAINST PLAINTIFF JORGE ALBERTO BALDERRAMA is
DENIED.

Background

This is an employment case. Plaintiff JORGE ALBERTO BALDERRAMA alleges the following against Defendant G. I. TRUCKING COMPANY, DBA ESTES WEST, DBA ESTES EXPRESS: Plaintiff was employed by Defendant for over 9.5 years. On or about February 11, 2025, Plaintiff learned the pallet jack was missing and reported that to his employer; the following day, he was ordered leave the premises. On February 14, 2025, Plaintiff was terminated due to alleged "low performance" but that he had been described as a reliable worker. Plaintiff alleges that he was terminated due to his age and national origin.

On April 14, 2025, Plaintiff filed suit
asserting the following causes of action (COAs):

1. Breach Of Employment Contract;
2. Wrongful Termination;
3. Failure To Pay Wages;

4. Age Discrimination;

5. National Origin Discrimination;

6. Retaliation; And

7. Infliction Of Emotional Distress

On May 15, 2025, Defendant filed its answer.

On January 7, 2026, the parties attended an IDC with respect to Defendant's discovery requests. There was no appearance by Plaintiff's Counsel. With that, the court set an "Order to Show Cause Re: Why the Court Should Not Issue Monetary Sanctions Against Counsel for Plaintiff for their Failure to Appear at the IDC on 01/07/2026 and/or Sanctions in the Form of

Dismissal for
Lack of Prosecution...."

On January 12, 2026, Defendant filed the instant motions.

On April 2, 2026, the court granted Defendant's Motion to Compel Special Interrogatories and Hearing on Motion to Compel Request for Production of Documents. Responses and sanctions, per the signed proposed orders, were due within 14 calendar days of the signing of the order. Of note, the motions were not opposed and Plaintiff's counsel submitted on the tentative ruling.

On April 30, 2026, the instant motion was filed. As with the other motions, this motion is not opposed by Plaintiff.

Discussion

Defendant makes this request on the ground that this court has inherent authority to dismiss this action with prejudice against Plaintiff because Plaintiff has ignored various court orders and/or in the alternative, terminating sanctions are also warranted based on Plaintiff's misuse of the discovery process under California Code of Civil Procedure

("CCP") § 2023.010. The court notes there is no opposition filed to this motion. While that may create an inference that the motion is meritorious, "dismissal is always a drastic remedy to be employed only in the rarest of circumstances." (Stephen Slesinger v. Walt Disney Co. (2007) 155 Cal.App.4th 736, 764, italics original (Slesinger).) Accordingly, as the court must act within the "bounds of reason" (id. at p. 765), even absent argument by plaintiff, this court must examine the circumstances of the case prior to issuing terminating sanctions. Doing just that, the court denies the motion.

Defendant cites to various authority but strongly relies upon Slesinger.[1]

Slesinger, however, militates against granting the motion. In Slesinger, the plaintiff sued the Walt Disney Company (Disney) alleging that Disney failed to pay certain royalties under its licensing agreement with Plaintiff. (Id. at p. 740.) Plaintiff hired an investigator to obtain Disney documents and to do so, the investigator who "obtained the documents by breaking into an uncertain number of Disney office buildings and secure trash receptacles, and by trespassing onto the secure facility of the company with which Disney had contracted to destroy its confidential documents." (Ibid, emphasis added.) Of note, Plaintiff concealed the investigator's activities from Disney and the court for years. (Ibid.) After a five-day hearing (in a case that spanned over ten years), the trial court found no lesser sanctions aside from terminating sanctions were warranted. Aside from illicitly obtaining documents, the trial court determined that certain documents were also altered by Plaintiff and that Plaintiff chose not to keep certain records. (Id. at pp. 755-756.) In short, Plaintiff's conduct was "so egregious that no remedy short of terminating sanctions can effectively remove the threat and adequately protect both the institution of justice and [Disney] from further [Plaintiff] abuse." (Id. at p. 756.)

Here, none of the facts above are present. The court does not disagree with Defendant that Plaintiff has failed to obey with a court 4/2/26 order requiring responses and sanctions by served/paid by 4/17/27; that during a more than 8-month time period Plaintiff's counsel never responded to any of Defendant's meet and confer efforts; that Plaintiff failed to attend a Court-ordered IDC; that Plaintiff failed to contribute to and/or file Joint IDC Statement beforehand; and that Plaintiff failed to oppose Defendant's motions to compel further discovery responses. But

the court disagrees that such failures trigger terminating sanctions. As framed by the Slesinger court, "The essential requirement is to calibrate the sanction to the wrong." (Id. at p. 755.) Here, the wrong can fairly be characterized as a lack of interest in prosecuting the case, but not as deliberate and egregious, which is required of the conduct. (Id. at p. 764.) And Defendant's very own citation to Knight v. Knight v. Pacific Gas & Elec.Co. (1960) 178 Cal.App.2d 923 supports this court's conclusion that dismissal by way of terminating of sanctions is inappropriate for a plaintiff's mere failure to prosecute a case. Instead, as in Knight, other procedures such as motion to dismiss for the failure to prosecute under CCP section 583 is more appropriate.

All in all, "dismissal is always a drastic remedy to be employed only in the rarest of circumstances." (Id. at p. 764, italics added.) Unlike Slesinger wherein there was a breadth of intentionally false representations and deliberate indifference to the truth which strongly influenced both court's decisions to dismiss the case prejudice, that is completely lacking here.

Conclusion

Based on the foregoing, the motion is denied.

[1] To the extent that Defendant relies upon Lyons v. Wickhorst (1986) 42 Cal.3d 91, that case equally does not support Defendant's position nor is it particularly instructive. In Lyons, the issue was whether "a trial court exceed its authority when it dismisses a plaintiff's action with prejudice because no evidence was presented at a court-ordered arbitration?" (Id. at p. 913.) The appellate court answered in the affirmative. But that opinion largely turned on a party's nonparticipation in the judicial arbitration process and how the Legislature via its 1984 amendment to section 128.5 chose not to provide for dismissal as a sanction if a party refuses to participate but instead it authorized a court to impose additional costs and attorney fees on the errant party or his attorney. (Id. at p. 918-919.)